

STATE OF NEW YORK

9145--A

2025-2026 Regular Sessions

IN ASSEMBLY

October 17, 2025

Introduced by M. of A. LAVINE -- read once and referred to the Committee on Governmental Operations -- recommitted to the Committee on Governmental Operations in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring venues of public accommodation to maintain accessible parking in accordance with federal law

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The legislature hereby finds and declares that accessible
2 parking is essential to ensuring equitable access to public accommo-
3 dations for individuals with disabilities. While federal law under the
4 Americans with Disabilities Act requires accessible parking, enforcement
5 at large venues has proven inconsistent. This legislation establishes
6 state oversight, annual certification, and a fair enforcement structure
7 to ensure consistent compliance without jeopardizing business licensure
8 unrelated to accessibility.

9 § 2. The executive law is amended by adding a new section 170-k to
10 read as follows:

11 § 170-k. Accessible parking compliance at public venues. 1. For
12 purposes of this section:

13 (a) "Venue" shall mean any arena, stadium, amphitheater, convention
14 center, or similar facility that:

15 (i) is located within the state of New York;

16 (ii) has a maximum occupancy of five hundred persons or more; and

17 (iii) hosts public performances, sporting events, concerts, exhibi-
18 tions, or other large public gatherings.

19 (b) "Accessible parking" shall mean off-street parking spaces and
20 related facilities that conform to the requirements of the 2010 Ameri-
21 cans with Disabilities Act Standards for Accessible Design including,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 but not limited to size, signage, surfacing, van accessibility, and
2 route to entrance.

3 2. (a) Every venue shall provide and maintain accessible parking
4 facilities in compliance with federal standards.

5 (b) Accessible spaces shall be located on the shortest accessible
6 route from parking to the principal entrance, be properly signed and
7 striped, and be free of obstructions.

8 (c) Accessible spaces shall be made available at the same price or
9 lowest rate offered for any parking on the same date.

10 3. (a) Each venue shall submit to the division of human rights an
11 annual certification of accessible parking compliance.

12 (b) Such certification shall include:

13 (i) a diagram of designated accessible parking spaces and routes;

14 (ii) a signed attestation by a licensed architect, engineer, or certi-
15 fied accessibility specialist that such spaces conform to federal stand-
16 ards; and

17 (iii) any changes made during the preceding year affecting the avail-
18 ability or configuration of accessible parking.

19 4. (a) The division of human rights shall investigate alleged
20 violations of this section and may conduct random audits of no less than
21 five percent of certified venues annually.

22 (b) Any venue found to be in violation shall be subject to a civil
23 penalty as follows:

24 (i) not more than two thousand five hundred dollars for a first
25 offense; and

26 (ii) not more than five thousand dollars for each subsequent offense
27 occurring within a two-year period.

28 (c) Municipalities shall have concurrent authority to inspect venues
29 within their jurisdiction and issue corrective orders or civil fines not
30 to exceed two hundred fifty dollars per day for ongoing non-compliance
31 after thirty days' notice.

32 5. (a) The division shall maintain a publicly available online regis-
33 try of certified venues and their compliance status.

34 (b) Any person may file a complaint under this section without fear of
35 retaliation. Retaliation shall constitute an unlawful discriminatory
36 practice under article fifteen of this chapter.

37 § 3. This act shall take effect on the one hundred eightieth day after
38 it shall have become a law. The division of human rights shall promul-
39 gate any rules and regulations necessary to implement this act within
40 ninety days of its enactment.